

23CV03439 Thomas Schiferl vs. General Motors, LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-18

Motion: Motion for Attorney Fees

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Tentative Ruling: Thomas Schiferl vs. General Motors, LLC

Case Number

23CV03439

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/18/2026 - 10:00

Nature of Proceedings

Motion for Attorney Fees

Tentative Ruling

For all reasons stated herein, plaintiff's motion for attorney fees is granted in the amount of \$29,118.45, inclusive of attorney fees and costs.

Background:

This action arises out of the purchase of a vehicle manufactured by defendant General Motors, LLC (GM).

As alleged in the complaint filed by plaintiff Thomas Schiferl on August 8, 2023:

On September 16, 2020, plaintiff travelled to Bunnin Chevrolet in Santa Barbara to acquire a safe and reliable electric vehicle that would be able to go at least 259 miles per charge and that did not have any defects with its battery. (Compl., ¶ 8.) When plaintiff arrived at the dealership, he met with the salesperson and asked her to show him a 2020 Chevrolet Bolt EV (the vehicle). (Ibid.) The salesperson assured plaintiff that there were no problems with the battery in the vehicle. (Ibid.) Once plaintiff was satisfied by the representations made by the salesperson and by GM that the vehicle's range on a single charge was 259 miles and that there were no problems with the vehicle's battery, plaintiff executed a lease for the vehicle on June 23, 2020. (Ibid.)

All owners and lessees of 2020 GM vehicles receive multiple express warranties directly from GM for periods of up to 8 years or 100,000 miles. (Compl., ¶ 8.) Owners and lessees receive these express warranties without regard to who they acquired the vehicle from or the terms of acquisition. (Ibid.) By issuing the express warranties directly to plaintiff, GM undertook to preserve or maintain the utility or performance of the vehicle or to provide compensation if there was a failure in the vehicle's utility or performance. (Ibid.)

Unbeknownst to plaintiff, the battery that GM installed in the vehicle can start a fire which resulted in GM issuing numerous recalls. (Compl., ¶ 10.) The recalls reduced the charge capacity of the battery and the distance the vehicle can be driven on a single charge. GM also advised vehicle owners not to charge the vehicle in their garages due to risk of fire. (Ibid.)

Pursuant to a recall issued by GM on August 20, 2021, plaintiff presented the vehicle to an authorized Chevrolet dealership to have the defective battery replaced. (Compl., ¶ 22.) The dealership advised plaintiff that the parts were not available and that it had no information as to when they would be. (Ibid.) Despite plaintiff's repeated presentations of the vehicle to GM's authorized repair facilities, GM has been unable to conform the vehicle to its express warranties. (Compl., ¶ 24.) The vehicle remains in a defective condition. (Ibid.)

GM was aware of the defective batteries plaguing Chevrolet Bolt vehicles, which includes cell battery imbalances or defects in the battery management system, as early as 2017. (Compl., ¶ 13.) Plaintiff would not have leased the vehicle had he been advised that he could not drive 259 miles on a single charge, or had he been advised that the vehicle could catch fire and burn down plaintiff's home. (Compl., ¶¶ 12, 27, 33.)

Plaintiff's complaint alleges six causes of action against GM: (1) fraudulent concealment and misrepresentation; (2) negligent misrepresentation; (3) unlawful, unfair, or fraudulent business acts and practices (Business and Professions Code section 17200 et seq.; (4) violation of the Song-Beverly Consumer Warranty Act (breach of express warranty); (5) violation of the Song-Beverly Consumer Warranty Act (breach of implied warranty); and (6) violation of the Song-Beverly Consumer Warranty Act (Civil Code section 1793.2, subdivision (b)).

On December 8, 2023, the court sustained a demurrer to the second cause of action for negligent misrepresentation, with leave to amend. Plaintiff did not file a first amended complaint.

On December 19, 2023, GM filed an answer to the complaint, generally denying the allegations therein and asserting thirty affirmative defenses.

On February 6, 2026, the parties reached a settlement of this action at a settlement conference. The settlement terms were read into the record:

"Defendant General Motors LLC shall pay to plaintiff Thomas Schiferl an amount of \$6,250.00 within 45 days of the date of this hearing, which includes any loan balance for the 2020 Chevrolet Volt, Vehicle Identification Number 161FU6S07L4131841, which is the subject vehicle of the litigation.

"Plaintiff's attorney fees, expenses, and costs reasonably incurred in the course of litigation may be sought by regular noticed motion pursuant to California Civil Code 1794(d), unless the parties agree otherwise in advance. Defendant agrees that

plaintiff is the prevailing party for these purposes, and waives costs.

"Within 5 days of satisfaction of the settlement as above, plaintiff shall file a dismissal of the entire matter with prejudice. The parties stipulate that the Court shall retain jurisdiction pursuant to CCP 664.6.

"(End settlement)" (Sett. Conf. Order, Feb. 6, 2026.)

"The Court inquired of the parties and declared this a judicially-enforceable settlement pursuant to CCP 664.6. The Court vacated the February 13, 2026, Trial Confirmation Conference date and the April 17, 2026, Motion: Compel date." (Sett. Conf. Order, Feb. 6, 2026.)

Plaintiff now moves for attorney fees pursuant to the settlement in the amount of \$29,672.30 and costs in the amount of \$1,321.15. (Mizrahi Decl., Exs. B, C.) This motion is opposed. As argued by GM, "Counsel seeks a fee award which suggests that the underlying matter was a long-running, far-reaching, complex litigation effort, involving in-depth discovery and significant motion practice before finally culminating in a trial. It was not. This case was instead a run-of-the-mill Song-Beverly matter that is indistinguishable from the dozens of other active matters that Counsel is litigating against GM alone." (Opp., p. 2, ll. 3-5.)

Analysis:

(1) Standards for Attorney Fees

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

"[This statute] requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.... A prevailing buyer has the burden of 'showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

"Because the award of attorney fees under the Song-Beverly Act, unlike other fee-shifting statutes, is limited to actual hours both expended and determined by the court to be reasonably incurred, the appellate courts have also unanimously held that '[i]t is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action' " [Citations.] '[T]he legislative policies are in favor [of the prevailing buyer's] recovery of all attorney fees reasonably expended, without limiting the fees" to a proportion of any recovery of damages or other monetary relief. [Citation.]' (Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105, 1112–1113 (Reynolds), internal quotation marks omitted.) "In awarding attorney fees, the trial court is limited by the terms of subdivision (d) of section 1794, which 'controls what the losing defendant must pay' " (Id. at p. 1116.)

"In determining the methodology to be used to award attorney fees under the Song-Beverly Act, the appellate courts have unanimously concluded the lodestar adjustment method of calculating attorney fees is appropriate for two reasons: (1) 'the lodestar adjustment method is based on actual, reasonable attorney time expended as the objective starting point of the analysis,' and (2) 'the lodestar adjustment method is the prevailing rule for calculation of statutory attorney fees unless the statute expressly indicates a contrary intent, and no such contrary intent is apparent' " (Reynolds, supra, 47 Cal.App.5th at p. 1112.)

"A trial court assessing attorney fees using the lodestar adjustment method 'begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.' [Citations.] Reasonable hourly compensation is based on "prevailing hourly rates" in the community, thereby "anchoring the calculation" to an objective standard. [Citation.] Once the touchstone or lodestar figure (reasonable hours multiplied by reasonable rates) is calculated as 'the basic fee,' 'it may be adjusted by the court [by applying a multiplier] based on factors including ..., (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award [Citation.] The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.' " (Reynolds, supra, 47 Cal.App.5th at p. 1112.)

(2) Time Spent Pertaining to Demurrer as to Fraud Claims

GM argues that 2.9 hours spent on the demurrer pertaining to the fraud cause of action should be stricken. (Motion, p. 3, ll. 3-26.) "GM seeks to strike compensation of 2.9 hours (\$1,467.50) related to the fraud claim [citation]." (Motion, p. 3, ll. 6-7.) "As Counsel has no statutory or contractual right to recover any fees from GM for the common law fraud claim, all fees associated with any time billed to these activities should be denied." (Motion, p. 3, ll. 24-26.)

" 'When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action.' [Citation.] However, '[s]uch fees need not be apportioned when incurred for representation on an issue common to both causes of action in which fees are proper and those in which they are not.' [Citation.] Moreover, '[a]ppportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.' [Citation]." (Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334, 349 (Santana).)

The court has reviewed the demurrer proceedings and evaluated the arguments presented as they pertain to the fraud and Song-Beverly claims. Under the Song-Beverly claims, "[i]f the buyer establishes that the failure to comply was willful, the judgment may include, in addition to the amounts recovered under subdivision (a), a civil penalty which shall not exceed two times the amount of actual damages." (Civ. Code, § 1794, subd. (c).) Plaintiff sought to prove willfulness under Civil Code section 1794, subdivision (c). (Compl., ¶¶ 67, 92.) The alleged misrepresentations constituting fraud could also support the element of willfulness under the Song-Beverly claims. Under these circumstances, the court is unable "to separate the attorney's time into compensable and noncompensable units" as to the issues of willfulness under the Song-Beverly claims and alleged fraud. (Santana, supra, 56 Cal.App.5th at p. 349.) The court finds that plaintiff carried his burden to demonstrate that 2.9 hours were reasonably spent on tasks in connection with the commencement and prosecution of this action. (Civ. Code, § 1794, subd. (d); see Mizrahi Decl., ¶ 7 & Ex. B.)

(3) Alleged Excessive, Duplicative, or Unnecessary Time

GM argues that "Counsel's fee request should be reduced because at least 34.7 hours of the 64.3 hours 'billed' reflect excessive, duplicative, and unnecessary time." (Motion, p. 6, ll. 4-6.)

GM argues without supporting legal citation that "[i]nitial consultation and due diligence prior to engagement are business expenses routinely treated as part of overhead. Here, despite referring to Plaintiff as a client, it is evident from the entries that no formal client relationship existed." (Motion, p. 6, ll. 10-14.) The court disagrees and finds that this time was reasonably spent "by the buyer in connection with the commencement and prosecution of [this] action." (Civ. Code, § 1794, subd. (d), *italics added*.)

GM argues that one hour is excessive for preparing the complaint and related documents and seeks to reduce this entry to one-half hour of compensable time. (Motion, p. 6, ll. 15-23.) The court disagrees and finds that one hour of time for the preparation of the complaint and related tasks is reasonable. The court finds that this time was reasonably spent in connection with the commencement and prosecution of this action.

GM argues that there were block-billed time entries for three attorneys for 7.3 hours for similar tasks. (Motion, p. 6, l. 24 – p. 7, l. 7.) GM asks for a 50 percent reduction to 3.65 hours. (Motion, p. 7, ll. 6-7.) “For example, Mr. Mizrahi conducted ‘[r]esearch re latest developments [...]’ but months later, a second attorney, Ms. Le, ‘billed’ for an ‘initial review of entire case file,’ and then five months later, a third attorney, Mr. Yakoobian, ‘billed’ to ‘[p]repare Status Report to client including latest developments.’ ” (Motion, p. 7, ll. 1-4.) The entries that GM challenges are months apart. These entries do not appear to reflect duplicative or unnecessary efforts. The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action. (Mizrahi Decl., ¶¶ 4-8 & Ex. B.)

GM argues that 4.6 hours is excessive for preparing discovery responses. (Motion, p. 7, ll. 8-15.) The November 28, 2023, entries pertain to responses to discovery served by GM including form interrogatories, special interrogatories (36), requests for production (54), and requests for admission (24). (Mizrahi Decl., ¶¶ 5-8; see Keshishian Decl., Ex. C.) GM argues plaintiff should have completed these tasks within one-half hour. The court has reviewed the discovery and disagrees. (See Keshishian Decl., Ex. C.) It is implausible that responses could have been drafted in one-half hour, even if opposing counsel was familiar with the types of requests in advance. The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action. (Mizrahi Decl., ¶¶ 4-8 & Ex. B.)

GM argues that 1.1 hours for the preparation of plaintiff’s initial discovery requests and a deposition notice is excessive and should be reduced to .5 hours. (Motion, p. 7, ll. 8-15.) The discovery includes requests for admission (26), requests for production (86), special interrogatories (63), and form interrogatories. (See Keshishian Decl., Ex. E.) The court disagrees and finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action. (Mizrahi Decl., ¶¶ 4-8 & Ex. B.) The court finds that 1.1 hours is reasonable, taking into consideration that similar requests were served by counsel in prior actions.

GM argues that 3.6 hours spent for reviewing GM’s discovery responses and preparing meet and confer correspondence should be reduced to 1 hour. (Motion, p. 7, l. 25 – p. 8, l. 8.) The court has reviewed the meet and confer correspondence dated February 5, 2024. (See Keshishian Decl., Ex. G.) The court notes that these discovery meet and confer efforts occurred as to different sets of responses, one set in the February 2024 timeframe and one set in the December 2025 timeframe. (Mizrahi Decl., Ex. B.) The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action. (Mizrahi Decl., ¶¶ 4-8 & Ex. B.) The court finds that 3.6 hours is reasonable for these tasks, taking into consideration that similar requests and correspondence were served and communicated by counsel in prior actions.

GM argues that 6.6 hours spent for preparing several motions to compel should be reduced to 2 hours. (Motion, p. 8, ll. 9-17.) The court has reviewed the motions to compel filed by plaintiff. (See Keshishian Decl., Ex. I.) The motions include two motions to compel, two separate statements, supporting evidence, reply briefs, and a hearing. The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action. (Mizrahi Decl., ¶¶ 4-8 & Ex. B.) The court finds that 6.6 hours is reasonable for these tasks, taking into consideration that similar motions were filed by counsel in prior actions.

GM argues that 3.8 hours to draft a motion to compel a deposition of GM’s person most knowledgeable should be reduced to 1 hour. (Motion, p. 8, ll. 18-26.) The court has reviewed the motion to compel filed by plaintiff. The tasks include a motion to compel, a separate statement, supporting evidence, and an amended notice of motion. The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action. (Mizrahi Decl., ¶¶ 4-8 & Ex. B.) The court does not find that these tasks were unnecessary because the parties had exchanged settlement communications through 998 offers. Settlement was not reached until February 6, 2026, and all pending motions were taken off-calendar at that time. (Sett. Conf. Order, Feb. 6, 2026.) The court finds that 3.8 hours is reasonable for these tasks, taking into consideration that similar motions were filed by counsel in prior actions.

GM argues that the court should strike .4 hours pertaining to an order to show cause pertaining to plaintiff counsel’s failure to appear at a case management conference. (Motion, p. 9, ll. 3-8.) The court will strike this time. The court agrees with GM that this time was not reasonably spent in connection with the commencement and prosecution of this action.

GM argues that 6.7 hours for time pertaining to the mandatory settlement conference should be reduced to 2 hours. (Motion, p. 9, ll. 9-18.) The court has reviewed the settlement conference filings and related procedures. The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action.

GM argues that 2.6 hours pertaining to the evaluation and strategy pertaining to GM's 998 Offer should be reduced to 1.3 hours. (Motion, p. 9, ll. 19-27.) The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action.

GM argues that two hours spent preparing a trial brief should be reduced to one hour because the trial brief was ultimately unnecessary and unfiled. (Motion, p. 10, ll. 2-6.) The court finds that plaintiff carried his burden to show this time was reasonably spent in connection with the commencement and prosecution of this action. Plaintiff was required to prepare for trial.

GM argues that the time spent on this fee motion should be reduced from seven hours to three hours. (Motion, p. 10, ll. 7-19.) The court agrees with GM, in part, and will reduce the time spent on this motion to four hours.

(4) Attorney Rates

GM argues that the attorney rates are unreasonable. GM requests that the court substantially reduce the hourly rates of \$575 for attorney Mizrahi and \$375 for attorneys Yakoobian and Le. The court finds that plaintiff carried his burden to demonstrate the reasonableness of the requested rates. (Mizrahi Decl., ¶¶ 9-46.) The court is familiar with the rates in the community for similar actions and finds that these rates are consistent with the community rates for similar work.

(5) Costs

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032.) The parties stipulated that plaintiff is the prevailing party and that plaintiff was entitled to recover his costs in this motion pursuant to Civil Code section 1794, subdivision (d). (Sett. Conf. Order, Feb. 6, 2026.)

The court has reviewed the cost memorandum filed by plaintiff. (Mizrahi Decl., Ex. C.) Plaintiff seeks to recover \$1,049.47 for filing fees and motion fees. The filing fee schedule indicates filing fees as follows:

Complaint \$466.65

Opposition re Defendant's Demurrer to Plaintiff's Complaint \$29.14

Motion to Compel \$76.48

Motion to Compel \$107.38

Case Management Statement \$14.57

Declaration \$14.57

Reply \$14.68

Motion \$107.38

Declaration \$14.68

Notice of Remote Appearance \$16.93

Notice of Non-Opposition \$16.93

Case Management Statement \$16.93

Motion to Compel \$116.94

Notice \$23.79

Notice \$12.42 (Mizrahi Decl., Ex. C.)

Plaintiff also seeks recovery of \$169.18 for jury fees, \$35 for service of process, and \$67.50 for other costs, totaling \$1,321.15. (Mizrahi Decl., Ex. C.)

It appears these costs are recoverable costs permitted by statute. (Code Civ. Proc., §§ 1032, 1033.5.) The court finds that plaintiff carried his burden to demonstrate that these costs were incurred, reasonably necessary to the conduct of the litigation, and reasonable in amount. The court will award the costs as requested in the amount of \$1,321.15.

(6) Lodestar Award

The court will reduce the time spent by Mizrahi by 3 hours at the rate of \$575, for a reduction of \$1,725 pertaining to this fee motion. (See Mizrahi Decl., Ex. B, time entry for 3/23/26.) The court will reduce the time spent by attorney Le by .4 hours for a reduction of \$150 pertaining to the order to show cause re failure to appear. (See Mizrahi Decl., Ex. B, time entry for 4/24/26.) The court finds that the remaining time spent by counsel for plaintiff was reasonable and necessary, and actually spent in connection with the commencement and prosecution of this action. (See Mizrahi Decl., Ex. B.) The court approves the requested attorney rates as reasonable and consistent with the community standards for similar work. (Mizrahi Decl., ¶¶ 9-46.) The approved lodestar for plaintiff's counsel consists of 60.9 attorney hours at the hourly rates of \$575 for attorney Mizrahi and \$375 for attorneys Yakoobian and Le, for a total of \$27,797.30 in approved attorney fees (\$29,672.30 requested less \$1,875 in reductions set forth above). (Mizrahi Decl., Ex. B.) The court makes no upward or downward lodestar adjustment based on risk, complexity, or other factors.

The court will grant plaintiff's motion for attorney fees in the total amount of \$29,118.45 (\$27,797.30 in attorney fees plus \$1,321.15 in costs).

Judges

Judge Donna D. Geck

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